

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

July 27, 2009

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. The pledge of allegiance was recited.

Also present: Kristy Anderson, Deputy City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Valdez, and pursuant to support received by Mr. Collins and Mr. Brown, agenda item #11 was removed from the Consent Agenda. Upon request by Ms. Case, and pursuant to support received by Mr. Brown and Mr. Collins, agenda item #22(a) was removed from the Consent Agenda. Upon request by Ms. Broyles, and pursuant to support received by Mr. Brown and Mr. Pierson, agenda item #14 was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON JULY 13, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON JULY 20, 2009. Motion (per Consent Agenda) carried.

Mr. Collins moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services (\$30,596.20), and vacated Council Chambers. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote Mr. Brown returned to Council Chambers.

"AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PORTION OF NORTHWEST QUARTER OF THE SOUTHWEST QUARTER (NW 1/4 SW 1/4) OF SECTION 20, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING (GENERALLY DESCRIBED AS FOLLOWS: A TRACT OF LAND LOCATED EAST OF POWDERHOUSE ROAD, NORTH OF AND ADJACENT TO LIFE CARE CENTER)." Kelly Hafner, Benchmark Engineers, representing developer, advised the annexation is in conjunction with the zone change and plat request. Linda Cross, Century Park Associates, developer of Life Care Centers of America, provided a handout (on file with City Clerk's Office) with samples of similar

projects that have been developed in other states and advised they intend to build an assisted living facility on the property. Reporting for Public Services Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Pierson. Comments in favor of annexation followed with discussion held on incremental annexations and having proper infrastructure in place prior to development. Motion carried. Voting “yes” – all members of the governing body. (#3867)

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM A-1 AGRICULTURAL AND RURAL RESIDENTIAL DISTRICT TO MUB MIXED USE WITH BUSINESS EMPHASIS DISTRICT FOR LIFE CARE CENTER, 2ND FILING, A TRACT OF LAND SITUATED IN A PORTION OF THE NW¼SW¼ OF SECTION 20, T.14N., R.66W., 6TH P.M., CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED EAST OF AND ADJACENT TO POWDERHOUSE ROAD, NORTH OF THE EXISTING LIFE CARE CENTER).” Mr. Brown moved to approve on second reading with staff recommendation #1, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body.

“A RESOLUTION IN SUPPORT OF THE ALLOCATION OF FISCAL YEAR 2008-2009 WARD I CONTINGENCY FUNDS TO THE CITY OF CHEYENNE TRANSIT PROGRAM FOR BUS TOKENS AND TO THE CITY OF CHEYENNE BOTANIC GARDENS FOR COSTS ASSOCIATED WITH THE ~~CHILDREN’S GARDEN~~ PAUL SMITH’S CHILDREN’S VILLAGE.” Joe Dougherty, Transit Program Director, expressed appreciation for consideration of funding for bus tokens for the Transit Program and explained these are primarily provided to low to moderate income individuals. He provided information on other entities that help with funding the bus token program. Reporting for Finance Committee, Mr. Valdez moved to adopt in the total amount of \$5,000, seconded by Ms. Broyles. Mr. Valdez moved to amend by substitute, seconded by Ms. Broyles. It was advised the substitute provides clarification of the name of the Garden from “Children’s Garden” to “Paul Smith’s Children’s Village”, and it was noted the resolution will provide funding in the amount of \$4000 for the Children’s Village and \$1000 toward bus tokens. Motion to amend carried. Voting “yes” – all members of the governing body. Comments followed in support of notifying the public on the use of City Council Ward contingency money. Upon inquiry, Riana Perez, Development Director for Botanic Gardens, explained funding for the new Children’s Village will be used for educational programming. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. (#5148)

“A RESOLUTION AUTHORIZING THE MAYOR TO SIGN A MEMORANDUM OF UNDERSTANDING WITH LARAMIE COUNTY TO APPLY FOR THE EDWARD BYRNE MEMORIAL JUSTICE ASSISTANCE GRANT PROGRAM.” Police Chief Bob Fecht explained an error had been discovered in Section 1 of the application (re: Memorandum of Understanding) that was initially submitted with the resolution and reviewed proposed corrective wording regarding monies the City and County would receive. He advised the grant is for both parties, not just the City as was originally stated. Mr. Valdez moved to adopt, seconded by Ms. Broyles. Mr. Valdez moved to amend by substitute, seconded by Mr. Collins. Upon inquiry, Chief Fecht clarified the substitute corrects the original resolution and Memorandum of Understanding to state funding is for both the City and the County. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. (#5149 RES/#5425 MOU)

[CA] “A RESOLUTION TO AMEND THE CITY OF CHEYENNE ANNUAL ACTION PLANS FOR FISCAL YEARS 2007-2008, 2008-2009 AND REALLOCATE FUNDING FOR TWO COMMUNITY DEVELOPMENT BLOCK GRANT (CDBG) PROJECTS.” Motion (per Consent Agenda) carried (sidewalk program \$3,415.71; tree removal program \$3,415.71). (#5150)

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR THE POINT, 4TH FILING, A REPLAT OF LOTS 11,12 & 13, BLOCK 14, THE POINTE, SECOND FILING, CHEYENNE, WYOMING (LOCATED SOUTH OF THE INTERSECTION OF DANIEL COURT AND MIRACLE PARKWAY).” Motion (per Consent Agenda) carried. (#5151)

“A RESOLUTION AMENDING RESOLUTION NO. 4751 OUTLINING ELECTION PROCEDURES AND GUIDELINES FOR A CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT SPECIAL ELECTION FOR THE PURPOSE OF SUBMITTING TO QUALIFIED DISTRICT VOTERS A BALLOT QUESTION PROVIDING FOR A SPECIAL PROPERTY ASSESSMENT AS AUTHORIZED BY WYO. STAT. §15-9-217 (b) AND (c).” Mr. Valdez moved to adopt, seconded by Mr. Collins. Upon inquiry on whether Council members who own property within the DDA District should declare a conflict of interest, City Attorney Dan White advised that the resolution is establishing the voting procedures with no financial gain received, therefore, he does not feel this would be a conflict of interest. Brief comments followed. Upon inquiry, Richard Mincer, DDA President, explained eligible property owner voting qualifications stating that individuals receive one vote per property tax assessment notice received. Comments followed on individuals who receive multiple property tax assessment notices and number of votes allowed vs. those who only receive one tax assessment notice with one vote; voter qualifications for past elections, and keeping property owners informed of the election voting process. Upon inquiry, Deputy City Clerk Kristy Anderson reviewed past eligible voter history explaining with the first two DDA elections held there was one vote allowed regardless of the number of properties owned. She explained in 1998 this changed to one vote allowed per property tax assessment notice received and that it has remained that way for elections held since that date. Further discussion followed. Pursuant to comments concerning a previous request to DDA for a copy of the DDA Director’s contract, Christian Cherek, DDA Director, responded that the request was received during their busiest time of year, and a copy of the contract had since been acquired through archived records at her earliest opportunity and provided to the City Council office. Motion carried. Voting “yes” – all members of the governing body. (#5152)

[CA] “A RESOLUTION ADOPTING AN AMENDMENT TO THE FUTURE LAND USE PLAN MAP IN PLANCHEYENNE, THE MASTER PLAN FOR THE CITY OF CHEYENNE AND THE COMPREHENSIVE PLAN FOR PORTIONS OF LARAMIE COUNTY, AMENDING THE LAND USE PLAN MAP CATEGORY FROM OPEN SPACE AND PARKS TO COMMUNITY BUSINESS FOR APPROXIMATELY 28 ACRES AT THE SOUTHEAST QUADRANT OF THE INTERSECTION OF WINDMILL ROAD AND DELL RANGE BOULEVARD” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR LIFE CARE CENTER, 2ND FILING, A TRACT OF LAND SITUATED IN A PORTION OF THE NW¼SW¼ OF SECTION 20, T.14N., R.66W., 6TH P.M., CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED EAST OF AND ADJACENT TO POWDERHOUSE

ROAD, NORTH OF THE EXISTING LIFE CARE CENTER)” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR ROBBINS SUBDIVISION, 2ND FILING, A REPLAT OF A PORTION OF LOT 1, BLOCK ONE, ROBBINS SUBDIVISION, LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF W. COLLEGE DRIVE, EAST OF BRIDLE BIT ROAD)” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION AUTHORIZING THE FILING OF AN APPLICATION WITH THE FEDERAL TRANSIT ADMINISTRATION, AN OPERATING ADMINISTRATION OF THE UNITED STATES DEPARTMENT OF TRANSPORTATION, FOR FEDERAL TRANSPORTATION ASSISTANCE AUTHORIZED BY TITLE 49, UNITED STATES CODE, SECTION 5307” -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] “A RESOLUTION RENAMING A PORTION OF SUMMIT DRIVE TO STOREY BOULEVARD” -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION DECLARING AS SURPLUS CITY-OWNED PROPERTY DESCRIBED GENERALLY AS THE NORTHERLY 85 FT. LESS THE EASTERLY 10 FT. OF LOT 2, BLOCK ONE, BIKE TRAIL ADDITION, CHEYENNE, LARAMIE COUNTY, WY, CONTAINING APPROXIMATELY 21,532 SQ. FT. OR 0.49431 ACRES, MORE OR LESS (GENERALLY LOCATED SOUTHEAST OF EAST 2ND STREET AND RUSSELL AVENUE INTERSECTION, EXTENDING TO THE WEST SIDE OF MORRIE AVENUE) AND AUTHORIZING THE SALE OF SAID PROPERTY TO FRONTIER REFINING, INC., WHICH SALE WILL BENEFIT THE ECONOMIC DEVELOPMENT OF THE MUNICIPALITY PURSUANT TO WYO. STAT. §15-1-112 (b)” -- referred to Finance Committee (sponsor - Mr. Spiker).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

Preliminary Plat for Windmill Road, 2nd Filing, a portion of the NE¼ of Section 28, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located at the southeast corner of the intersection of Dell Range Boulevard and Windmill Road).” Jeff Wiggins, Parks and Recreation Department, reviewed past history of the area and the proposed Greenway alignment for recreation and utilitarian purposes; connectivity; safety incidents that have occurred at the intersection; proposed re-alignment of Greenway path as outlined on the handout provided (on file in City Clerk’s office) with east-west connectivity remaining the same, and possibility of future sale of land for commercial development. Mr. Brown moved to acknowledge receipt with staff recommendations #1 and 2 and Planning Commission recommendation #3, seconded by Mr. Pierson. Mr. Brown moved to remove Planning Commission recommendation #3, seconded by Mr. Pierson, which reads as follows: *City to retain ownership of Lot 1, Block One for the greenway, as indicated on the preliminary plat map as submitted.* Brief discussion followed. Motion to remove Planning Commission recommendation #3 carried. Voting “yes” – all members of the governing body. Comments of concern followed regarding the possibility of declaring land as surplus, development of the land and whether the governing body has the ability to place restrictions on what is eventually developed, and who would receive land sale proceeds, if sold. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Broyles, Ms. Case and Dr. Rinne voting “no”.

LEASES/CONTRACTS/LEGAL:

Agreement between the City of Cheyenne, Attorney's Office, and Bill G. Hibbler for professional legal services. John Fafoutakis questioned the need to contract for outside legal counsel relative to services provided by City Attorney staff. Mr. Valdez moved to approve, seconded by Ms. Broyles. Upon inquiry, City Attorney Dan White explained that the contract with Mr. Hibbler provides for legal services for representing the Board of Adjustment and Contractors Licensing Board when City legal staff may have a potential conflict of interest representing those Boards. Motion carried. Voting "yes" – all members of the governing body. (#5420)

[CA] Contract between the City of Cheyenne, Police Department and the Cheyenne Regional Airport Board for law enforcement services. Motion (per Consent Agenda) carried. (#5421)

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Tina Henderson for crime victim assistance services. Motion (per Consent Agenda) carried (in the amount of \$46,931.70). (#5422)

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Brenda Johnson for crime victim assistance services. Motion (per Consent Agenda) carried (in the amount of \$43,008.29). (#5423)

[CA] Agreement between the City of Cheyenne, Architects Design Group, Inc. and The Center for Public Safety, Inc. for a detailed spatial needs assessment for current and future requirements for proposed new facility to include the Police Department, Emergency Communications, Fire Administration and Laramie County Emergency Management. Motion (per Consent Agenda) carried (in an amount not to exceed \$32,500.00). (#5424)

[CA] Hunter Management Agreement between the City of Cheyenne, Public Works Department, and the State of Wyoming, Game & Fish Department, for the Lone Tree Hunter Management Area on the Belvoir Ranch -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Youth Alternatives, and Laramie County, Wyoming for juvenile probation services -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 2 to Contract No. 5321 between the City of Cheyenne, Parks & Recreation Department, and RECCO Inc. d/b/a Five-R Co. to allow for additional work and amenities at the Youth Activity and Community Center in David R. Romero South Cheyenne Community Park (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$90,282.00). (#5321)

[CA] Contract Modification No. 1 to Contract No. 5201 between the City of Cheyenne and Ohlson Lavoie Collaborative to allow for additional design work and reimbursable expenditures for the Youth Activity and Community Center in David R. Romero South Cheyenne Community Park (2007-2010 1% Sales Tax) -- referred to Finance Committee.

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #R-32-09 for furnishing one new cab & chassis with collection body, from Lariat International, Cheyenne for the Sanitation Department. Motion (per Consent Agenda) carried (amount not to exceed \$188,012.22).

[CA] Consideration of Bid #R-1-10 for furnishing one new truck with lube body, from Peterbilt of Wyoming, Cheyenne for Fleet Maintenance Department. Motion (per Consent Agenda) carried (amount not to exceed \$148,648.00).

[CA] Consideration of Bid #R-2-10 for furnishing one new cab & chassis truck from Peterbilt of Wyoming, Cheyenne for Forestry Department. Motion (per Consent Agenda) carried (amount not to exceed \$85,943.00).

[CA] Consideration of Bid #M-2-10 for a contract between the City of Cheyenne and Mill Brothers Landscape and Nursery Inc., Ft. Collins, CO, for the Saddle Ridge Neighborhood Park, Phase I, Irrigation Project -- referred to Finance Committee.

APPOINTMENTS:

Appointment of James E. Elias as Public Works Director for the City of Cheyenne. Mr. Collins moved to approve, seconded by Mr. Brown. Upon inquiry, James Elias introduced himself and thanked the Mayor and City Council members for the privilege to be considered for the appointment. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment). Mayor Kaysen announced Mr. Elias would receive his oath of office at 8:30 a.m. in City Council Chambers on July 28, 2009. He expressed appreciation to Vicki Nemecek for serving as Interim Public Works Director.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made of the Appointment of Mary Eres-Anderson to the Community Action of Laramie County -Executive Board of Directors; and Regina Meena and Sam Janney to the Mayor's Council for People with Disabilities, to be confirmed August 10, 2009.

Announcement was made of a Public Meeting to be held August 10, 2009 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Ave., Cheyenne, WY, to receive comments and input on the Cheyenne Transit Program Fiscal Year 2010, 49 U.S.C., §5307 Federal Operating Grant; required changes for complimentary paratransit bus operations and service hours; and minor route modifications to accommodate American Recovery and Reinvestment Act (Economic Stimulus Funding) funded improvements for up to approximately 53 bus pullouts/shelters and/or benches at designated areas.

Announcement was made of a Public Meeting to be held August 10, 2009 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Ave., Cheyenne, WY, to receive comments and input on the submission of a grant application to the Federal Transit Administration, an Operating Agency of the United States Department of Transportation, as authorized by 49 U.S.C., §5307, for approximately \$881,984.00 in Federal Funds.

Announcement was made of a Public Hearing to be held August 10, 2009 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Ave., Cheyenne, WY, to identify the need and opportunity, and to explore funding and alternative solutions for development of the Saddle Ridge Park.

OTHER CITY BUSINESS:

John Fafoutakis expressed concerns regarding the engineering and traffic data information discussed for the proposed roundabout at the Pershing/Converse intersection area during the last City Council meeting, questioned the contract with Ayres and Associates providing the design work for the roundabout, and related information regarding a roundabout located in Beaumont, TX.

City Attorney Dan White requested the governing body meet in executive session to discuss matters involving potential litigation. Mr. Collins moved to meet in executive session, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body. Mayor Kaysen announced the motion carried and members would meet in executive session in Council Chambers, not open to the public, following a brief recess; that there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would be officially concluded at the close of the executive session. (Clerk's Note: Executive session began at 6:59 p.m.)

There being no further business to come before the governing body prior to the executive session, the meeting was officially adjourned at 8:18 p.m. following closure of the executive session.

Submitted by,

Kristy B. Anderson, CMC
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
August 4, 2009